



MUNICIPAL COUNCIL RULES

WHEREAS, the Municipal Council of the City of Newark, New Jersey, wishes to establish rules of procedure of its meetings.

NOW THEREFORE BE IT RESOLVED BY THE MUNICIPAL COUNCIL OF THE CITY OF NEWARK, NEW JERSEY, THAT the following rules of procedure shall govern the conduct of meetings of the Municipal Council of the City of Newark, New Jersey:

RULE I. GOVERNING RULES.

Except as may be provided in the charter, all questions of order, the methods of organization and the conduct of business of the Municipal Council shall be governed by Robert's Rules of Order, Newly Revised in all cases to which they are applicable as determined by the City Clerk as parliamentarian for the Municipal Council and in which they are not inconsistent with the following rules of the Council.

RULE II. PRE-MEETING CONFERENCES.

The Municipal Council shall hold pre-meeting conferences at 10:00 a.m. on all days preceding the day on which a regular meeting of the Council is held. Provided, however, that when the day fixed for any pre-meeting conference of the Municipal Council falls upon a day designated by law as a legal, religious or national holiday, or in the event that it is known that a majority of the Municipal Council will not be available, such conference shall be held on a succeeding day not a holiday, as established by the City Clerk, as secretary to the governing body, in the annual meeting notice.

The Pre-Meeting Conference shall convene in the Municipal Council Chamber, on the second floor in City Hall or the Council Conference Room on the third floor of City Hall to be determined by the City Clerk based on agenda items to be considered.

Pre-meeting conferences of the Municipal Council may be televised under the authority and permission of the Municipal Council.

RULE III. REGULAR MEETING; PLACE OF MEETING.

The Municipal Council shall hold regular meetings on the first Wednesday of each month at 12:30 p.m. and the third Wednesday at 6:30 p.m. or as soon thereafter as is possible, except as hereinafter provided. However, only one regular meeting shall be held in the months of July and August on a date and time to be established by the City Clerk, as secretary to the governing body, in the annual meeting notice. Further when the day fixed for any regular meeting of the Municipal Council falls upon a day designated by law as a legal, religious or national holiday, or in the event that it is known that a majority of the Municipal Council will not be available, such meeting

shall be held on a succeeding day not a holiday as established by the City Clerk, as secretary to the governing body, in the annual meeting notice.

All regular meetings of the Municipal Council shall be held in the Council Chamber on the second floor of City Hall except as hereinafter provided. The organization meeting of the Municipal Council held on July 1st following the election of the Municipal Council may be held in a facility selected by the City Clerk prior thereto for the convenience of the public.

Regular meetings of the Municipal Council may be televised under the authority and permission of the Municipal Council.

RULE IV. SPECIAL CONFERENCES

The Municipal Council shall hold special conference meetings at 10:00 a.m. on the second and fourth Tuesday of each month except the months of July and August in which there shall be no special conference meeting. When the day fixed for any special conference meeting of the Municipal Council falls upon a day designated by law as a legal, religious or national holiday, or in the event that it is known that a majority of the Municipal Council will not be available, such special conference meeting shall be held on a succeeding day not a holiday as established by the City Clerk, as secretary to the governing body, in the annual meeting notice.

The special Conference meeting shall convene in the Municipal Council Conference Room, on the third floor in City Hall.

RULE V. SPECIAL MEETINGS

A Special Meeting of the Municipal Council may be called by the Mayor, President of the Municipal Council or by a majority of the members of the Municipal Council. Whenever a Special Meeting shall be called, the person(s) calling for a Special Meeting shall serve in writing a notice on the City Clerk signed by those same person(s). Those person(s) at the time of a call for a Special Meeting must submit all legislation and supporting documents pertaining to the call of said meeting. The Clerk after receiving the call for a Special Meeting shall forthwith serve notice upon each member of the Municipal Council and the official newspaper(s), stating the date and hour of the meeting and purpose for which such meeting is called. No other business shall be transacted at any Special Meeting other than the items listed in the call letter of the Special Meeting.

All Special Meetings of the Municipal Council shall be held in the Council Chamber on the second floor of City Hall except as hereinafter provided.

Special Meetings of the Municipal Council may be televised under the authority and permission of the Municipal Council.

RULE VI. AGENDA.

All reports, communications, ordinances, resolutions, claims, licenses, contracts, documents or other matters to be submitted to the Municipal Council by the Mayor or Business Administrator shall, at least seventy-two (72) business hours prior to each regular Municipal Council Meeting, be delivered to the City Clerk, whereupon the City Clerk shall immediately review the documents submitted for completeness. Should the City Clerk determine that the documents

submitted are not complete, he shall communicate with the originating agency to request that the information required to complete the documents be submitted. Once a document is deemed complete by the City Clerk, he shall submit copies to the President of the Municipal Council for his authorization to place the legislation on the agenda for the Municipal Council meeting. Upon receipt of the approval from the President of the Municipal Council the City Clerk shall prepare an agenda of such matters, except as otherwise directed by the President of the Municipal Council, or by a majority of the members of the Municipal Council, together with such additional matters that he may have to present, in conformity with the prescribed order of business as hereinafter provided and shall furnish a copy to each member of the Municipal Council.

The Municipal Council shall neither consider nor take action on any matter submitted to the City Clerk within seventy-two (72) business hours prior to each Municipal Council meeting, unless such matter relates directly to a sudden and unforeseeable emergency affecting the public health, safety or welfare and certified as such an emergency by the Department Director or the Business Administrator. The certification shall state the reason for the emergency which requires legislation to be acted upon immediately as well as providing the reasons for the delay in submitting appropriate documentation in time for inclusion on the printed agenda. Such legislation shall be accompanied by a letter from the Mayor requesting that the legislation be considered as an "added starter". The added starter legislation must be signed by the President of the Municipal Council before it can be added to the agenda. The appropriate department head or his designee shall appear before the Municipal Council to answer any questions regarding the added/late legislation. If the department head or designee is not in attendance to explain the added/late legislation, then the governing body shall not entertain said legislation until the next regular Municipal Council Meeting.

When the Municipal Council has tabled or rejected any ordinance or resolution submitted by the Mayor or Business Administrator, at the request of the Administration, the Mayor or Business Administrator may resubmit such legislation at any time thereafter. When the Municipal Council has tabled or rejected any ordinance or resolution submitted by the Mayor or Business Administrator, absent a request by the Administration, the agenda shall not include any such ordinance or resolution for a period of one year immediately following the date of such tabling or rejection, without the prior consent of the Municipal Council.

When an ordinance or resolution submitted by the Mayor or Business Administrator, fails to gain the necessary votes for adoption during three meetings of the Municipal Council, the agenda shall not include any such ordinance or resolution for a period of one year immediately following the date of the third meeting of the Municipal Council, without the prior consent of the Municipal Council. Such legislation shall be returned to the originating agency.

The City Clerk shall furnish the Mayor, Business Administrator, Corporation Counsel, directors of the departments and all heads of divisions, with a copy of the agenda prior to the Municipal Council meeting and as far in advance of the meeting as time for preparation will permit.

- A. It shall be the responsibility of the City Administration to ensure that legislation pertaining to the transfer, sale or purchase of City-owned real property which is forwarded to the Municipal Council for its consideration state the use for which the property is to be transferred, sold or purchased; such legislation shall also contain a reverter clause stating the real property sold by the City shall revert to the City's ownership after one year from the effective date of the subject

legislation if the purchasing entity has not made substantial progress in the development of such real property.

- B. If the above information relating to the purpose of the real property transfer, sale or purchase and/or the reverter clause itself is not included in proposed legislation when submitted to the Municipal Council for its consideration, the City Clerk shall have the authorization to accept the legislation and not place same on the Municipal Council agenda until such information is forwarded by the City Administration.

RULE VII. THE PRESIDING OFFICER-ELECTION AND DUTIES

The Presiding Officer of the Municipal Council shall be the President of the Municipal Council. He shall be elected at the organization meeting held on July 1st following the election of the Municipal Council. A Vice President of the Municipal Council shall also be elected at the organization meeting held on July 1st following the election of the Municipal Council who shall have the authority to function as the Presiding Officer, in the absence of the President. In the absence of the President and Vice President, the Municipal Council shall elect a temporary Presiding Officer who shall then preside over the Municipal Council. The President of the Municipal Council shall assume the chair of Presiding Officer immediately after his election. The President of the Municipal Council shall preserve strict order and decorum at all regular and special meetings and conference meetings of the Municipal Council. The City Clerk shall state every question coming before the Municipal Council and announce the decision of the Municipal Council on all matters coming before it. A majority vote of the full statutory membership of the Municipal Council shall govern and conclusively determine all questions of adoption of legislation not otherwise herein covered. The Municipal Council President shall vote on all questions; his name being called last. The Municipal Council President shall sign all ordinances and resolutions adopted by the Municipal Council during his presence. In the event of the absence of the president, such ordinances and resolutions shall be signed by the Vice President of the Municipal Council or the temporary Presiding Officer elected by the Municipal Council.

RULE VIII. PARLIAMENTARIAN

The City Clerk or his designee in his absence shall act as parliamentarian and shall advise and assist the Presiding Officer in matters of parliamentary law.

RULE IX. CORPORATION COUNSEL

The Corporation Counsel or such member(s) of her office as she may designate, shall be available to the Municipal Council at all regular and special meetings and conference meetings. The Corporation Counsel or her designee shall draft ordinances, resolutions or other legal documents when requested by the Municipal Council.

RULE X. CALL TO ORDER

The President of the Municipal Council shall take the chair at the hour appointed for the regular meetings, special meetings or conference meetings and shall immediately call the Municipal Council to order. In the absence of the Municipal Council President the Municipal Council

Vice President, shall call the Municipal Council to order. In the absence of the Municipal Council President and Vice President the City Clerk shall call the Municipal Council to order. The City Clerk shall then determine if a quorum is present and in that event shall call for the election of a Temporary President. Upon the arrival of the President, the Temporary President shall forthwith relinquish the chair upon the conclusion of the business immediately before the Municipal Council.

RULE XI. OPENING ROLL CALL

Before proceeding with the business of the Municipal Council, the City Clerk, or his designee, shall call the roll of the members in alphabetical order and the names of those present shall be entered in the minutes.

RULE XII. QUORUM

A majority of the full statutory membership of the Municipal Council shall constitute a quorum for all regular and special meetings. A quorum is not required for a conference meeting.

Should no quorum attend within thirty (30) minutes after the hour appointed for the meeting of the Municipal Council, a majority of the Council Members present, the City Clerk, or his designee, may thereupon adjourn the meeting until another hour or day.

The name of the members present and their action at such meeting shall be recorded in the minutes by the City Clerk.

RULE XIII. OPEN MEETING; ORDER OF BUSINESS

All pre-meetings, regular meetings, conference meetings and special meetings of the Municipal Council shall be open to the public. At the hour set for each meeting, the Members of the Municipal Council and the City Clerk shall take their regular stations in the Council Chamber or the location called for in the New Jersey Open Public Meetings Act announcement for a particular meeting; and at regular meetings and so far as practicable at special meetings, the business of the Municipal Council shall be taken up for consideration and disposition in the following order:

1. Call to Order: National anthem
2. Invocation
3. New Jersey Open Public Meetings Act Declaration
4. Roll Call
5. Reports and recommendations
6. Ordinances
7. Resolutions and motions
8. Communications
9. Pending business on the agenda
10. Miscellaneous
11. Hearing of Citizens
12. Adjournment

At the second regular meeting of the month, the business of the Municipal Council shall be taken up for consideration and disposition in the following order:

1. Call to Order: National anthem and Invocation
2. New Jersey Open Public Meetings Act Declaration
3. Roll Call
4. Hearing of Citizens
5. Reports and recommendations
6. Ordinances
7. Resolutions and motions
8. Communications
9. Pending business on the agenda
10. Miscellaneous
11. Hearing of Citizens
12. Adjournment

(7R9-E 062012)

RULE XIV READING OF MINUTES

Minutes when signed by the Municipal Council President and the City Clerk shall be considered approved without reading, provided that the City Clerk, shall deliver a copy thereof to each member of the Municipal Council as soon as is practicable.

RULE XV RULES OF DEBATE

- a) **Questions under consideration.** A question presented and seconded is under consideration and no motion shall be received thereafter, except to adjourn, to lay on the table, to defer or to amend, until the question is decided. These motions shall have preference in the order in which they are made and the first two (2) shall be decided without debate. There shall be no debate on a motion to table any legislation before the Municipal Council. Any legislation that has been tabled by a vote of the Municipal Council may only be removed from the table by the members of the Municipal Council that sponsored the original motion.
- b) **Participation by the Municipal Council President.** The Municipal Council President, or such other member of the Municipal Council as may be presiding may move, second or debate from the chair, subject only to such limitations of debate as are by these rules imposed upon all members and shall not be deprived of any of the rights and privileges of a Municipal Council Member by reason of his being Presiding Officer.
- c) **Getting the floor. Improper reference to be avoided.** Every Council Member desiring to speak for any purpose whatsoever shall address the Presiding Officer and upon recognition, shall confine himself to the question under debate, avoiding all personalities and indecorous language. A Council Member may only speak once on the same subject but may speak to clear up a matter of fact or explain a material part of his speech.
- d) **Interruptions.** A Council Member once recognized, shall not be interrupted when speaking unless it is to call him to order or as herein otherwise provided.

If a Council Member while speaking should be called to order he shall cease speaking until the question of order is determined by the Presiding Officer and if in order he shall be permitted to proceed. Any Council Member may appeal to the Municipal Council from a decision of the Presiding Officer upon a question of order, whereupon without debate the Presiding Officer shall submit to the Municipal Council the question, "Shall the decision of the chair be sustained," and the Municipal Council shall decide the question by a majority vote.

- e) **Privilege of closing debate.** The Council Member moving the adoption of an ordinance, resolution or motion shall have the privilege of closing debate.

RULE XVI. ROLL CALL FOR VOTING.

Upon any roll call there shall be no discussion or explanation given by any Council Member voting, and he shall vote "yes" or "no" unless he shall first receive special permission from a majority of the Municipal Council to explain his vote. A Council Member may abstain from voting on any matter, such abstention shall not be counted as a yes or no vote but shall be recorded in the minutes. The vote upon every ordinance, resolution or motion shall be taken by roll call in alphabetical order except that the Presiding Officer shall be the last member called, and the vote shall be entered in the minutes.

RULE XVII. ADDRESSING THE MUNICIPAL COUNCIL: TIME LIMIT

The Newark Municipal Council hereby affirms and supports the right of citizens to speak at public meetings of the Municipal Council in accordance with the Municipal Council's own rules of procedure and any applicable statutes of the State of New Jersey.

A hearing of citizens shall be held during the course of each regular meeting of the Municipal Council as set forth in Rule III.

Any person may be permitted to address the Municipal Council during the Hearing of Citizens session, provided that notice by such person is given to the Office of the City Clerk by either personal appearance, mailed correspondence or facsimile no earlier than 8:30 A.M. on the day following the Municipal Council meeting but no later than 4:00 12:00 P.M. (Noon) on the ~~Monday~~ Friday preceding the Municipal Council meeting at which the individual wishes to speak. The first twenty-five (25) persons to register by the closing deadline will be eligible to speak during the Hearing of Citizens for the up-coming Municipal Council meeting. Once the Hearing of Citizens has commenced and the roll call of the list of speakers has begun, anyone who is not present or who does not respond at the time his name is called, shall be deemed as "not appearing" and his name shall not be recalled at a later time to address the Council at that session. Those persons wishing to address the Municipal Council shall provide by the above deadline the following information to the Office of the City Clerk: signature, printed legal name, place of residence, which shall not include a Post Office Box, day and evening telephone numbers and the nature or subject of the proposed topic. The City Clerk, or his designee shall have the authority to modify any proposed topic in order to avoid personally insulting, defamatory, malicious or derogatory statements on the list of speakers for the Hearing of Citizens. (7R8-e(as) 012319)

The registration form for speakers for the Hearing of Citizens session shall contain a statement of the rules of decorum for the Hearing of Citizens. It shall also include a statement that

the individual understands the rules of decorum for the Hearing of Citizens, acknowledges and agrees to conduct in accordance with the rules. This statement shall be signed by all persons wishing to speak at the Hearing of Citizens. Any person refusing to sign this statement shall not be placed on the list of speakers for the Hearing of Citizens. Any person who signs this statement but fails to abide by the rules shall not be permitted to register to speak at a Hearing of Citizens for the succeeding two (2) Municipal Council Meetings nor shall such person be recognized as a speaker in the public speaking period following a pre-meeting, conference meeting or Special meeting until they are eligible to speak at a Hearing of Citizens. Any person so barred from speaking who upon regaining eligibility to speak at a Hearing of Citizens again violates the rules of decorum, shall be barred from speaking at future Hearing of Citizens for a period to be established by the Presiding Officer.

All speakers during the Hearing of Citizens shall be permitted five (5) minutes to speak.

Prior to the conclusion of a pre-meeting conference, there shall be allocated a period of time not to exceed thirty (30) minutes wherein citizens may address the Municipal Council on any topic relevant to any Newark municipal government issue. Each individual speaker shall be limited to a maximum time period of three (3) minutes. Any person present at the pre-meeting, may speak within the limitation herein established. The Presiding Officer will select the person to be given the floor and establish the order of speaking.

Prior to the conclusion of a special conference meeting, there shall be allocated a period of time not to exceed thirty (30) minutes wherein citizens may address the Municipal Council on any topic relevant to any Newark municipal government issue. Each individual speaker shall be limited to a maximum time period of three (3) minutes. Any person present at the special conference meeting, may speak within the limitation herein established. The Presiding Officer will select the person to be given the floor and establish the order of speaking.

Prior to the conclusion of a special meeting, there shall be allocated a period of time not to exceed thirty (30) minutes wherein citizens may address the Municipal Council on any topic relevant to any Newark municipal government issue. Each individual speaker shall be limited to a maximum time period of three (3) minutes. Any person present at the special meeting, may speak within the limitation herein established. The Presiding Officer will select the person to be given the floor and establish the order of speaking.

In the event that a special meeting and a special conference meeting are held on the same day, there shall be only one (1) thirty (30) minute period allowed for comments by public speakers.

Any person addressing the Municipal Council during a public hearing for an Ordinance on Public Hearing, Second Reading and Final Passage, shall confine his remarks to the specifics of the Ordinance in question. No other matter may be discussed. Speakers will be permitted three (3) minutes to address the Municipal Council on the Ordinance.

Notwithstanding the separation of powers between the Executive and Legislative branches of the Newark Municipal government under state law, the Municipal Council may request, through the Mayor or Business Administrator, that representatives of the City Administration be present during all Hearing of Citizens sessions.

RULE XVIII. MANNER OF ADDRESSING THE MUNICIPAL COUNCIL

Each person addressing the Municipal Council at Regular Meetings, Special Meetings, Hearing of Citizens and Ordinances on Public Hearing, second reading and Final Passage, shall step up to the microphone, shall give his name and address in an audible tone of voice for the record and shall limit his comments to the time period established in RULE XVII. The speaker shall face forward and all remarks shall be addressed to the Presiding Officer and Municipal Council as a body and not to an individual Municipal Council Member or the audience. A Municipal Council Member shall not interrupt a speaker during his speaking time, except the Presiding Officer for parliamentary purposes only.

Questions for which a speaker is seeking answers, must be provided in writing by the speaker to the City Clerk or his designee and he shall prepare a written response to the question and submit it to the requestor within ten (10) business days. For the purpose of clarity, the first day of the ten (10) day response time shall be the day following the Municipal Council meeting in which the question was presented.

Should a Municipal Council Member wish to respond to a speaker's remarks during the Municipal Council meeting he shall limit his response and/or remarks to three (3) minutes. A Council Member may not respond to a speaker's comments before the speaker has concluded his remarks and returned to his seat.

The Hearing of Citizens Session affords citizens an opportunity to speak on matters of interest pertaining to the City of Newark and its residents. The Council however intends to preserve order and proper decorum at all times during the Hearing of Citizens. A speaker must at all times conduct himself in a manner which avoids disorderly conduct or behavior, not make comments that are excessively loud, disruptive, obscene or otherwise in violation of applicable law, or make statements directed at Council Members or City Officials that are defamatory or malicious. The Presiding Officer may interrupt or terminate any individual's speaking privilege if these rules are violated and further may prohibit requests from such individual to register and speak at future Municipal Council meetings in accordance with RULE XVI.

When a speaker's name is called he must promptly come up to the podium and begin his remarks. Citizens attending the public meeting of the Municipal Council shall remain seated at all times unless he is the speaker at the podium.

RULE XIX. DECORUM

- (A). **By Municipal Council Members.** While the Municipal Council is in session, the Members must preserve order and decorum. A Council Member shall not, by conversation or otherwise, except as herein otherwise provided, delay or interrupt the proceedings or the peace of the Municipal Council, or disturb any members while speaking or refuse to obey the orders of the Municipal Council or its Presiding Officer. While the Municipal Council is in session, public ceremonies shall be limited to the National Anthem and Invocation as provided in the order of business on the agenda.

The presentation of commending resolutions shall take place prior to the official start of the regular Municipal Council meeting.

- (B). **By other persons.** No person shall by noisy or disorderly conduct disturb or interfere with the quiet good order of a meeting of the Municipal Council. Any person who has been declared out of order by the Presiding Officer and has been asked to cease speaking and to sit down, shall comply immediately or he shall forthwith be removed from the meeting, unless permission to continue or again address the Municipal Council is granted by the majority vote of the Municipal Council.
- (C) No person, unless they are a bonafide law enforcement officer, shall enter the Municipal Council Chamber with any items which may be construed as being a potential weapon. Further, persons who have been called upon to address the Members of the Municipal Council shall be prohibited from approaching the Municipal Council rail with any items which could be used for the concealment of any substance or weapons.
- (D). **Enforcement.** The Chief of the Police Department or her designee(s) shall be the sergeant-at-arms of the Municipal Council meetings. She shall carry out all orders and instructions given by the Presiding Officer for the purpose of maintaining order and decorum at the Municipal Council meetings.
- (E). **Use of cameras and recording devices; limited.** Cameras, including television and motion picture cameras, electronic sound recording devices and any other mechanical electrical or electronic recording devices may be used, but only such in a manner as will cause no interference or disturbance of the proceedings of the Municipal Council.

Supplemental lighting for cameras, including television and motion picture cameras shall be used only in exercise of extreme discretion in regard to the intensity and duration of such lighting with a view to creating the least amount of disturbance to the proceedings of the Municipal Council and the least amount of discomfort to the members of the public in attendance.

The Municipal Council may by a two-thirds vote of the full authorized membership of the Municipal Council thereof, prohibit the presence of cameras and recording devices hereinabove granted when the Municipal Council determines that the presence of cameras and recording devices is unreasonably interfering with or disturbing the proceedings of the Municipal Council.

RULE XX. PERSONS AUTHORIZED TO BE WITHIN THE MUNICIPAL COUNCIL RAIL.

No person except the City Clerk and his representatives shall be permitted within the rail in front of the Municipal Council or be permitted to disturb any Municipal Council Member while on the dais, during any meeting without the express permission of the Municipal Council.

RULE XXI. SPECIAL COMMITTEES.

All Special Committees and the Chairperson thereof, shall be appointed by the Presiding Officer at a regular or special meeting or by written notice to the City Clerk.

A Special Committee shall consist of not more than four (4) members of the Municipal Council including the Presiding Officer who shall be a member ex-officio of all Special Committees; provided, however, that the Presiding Officer may appoint a Special Committee consisting of all the Members of the Municipal Council. The Budget Committee shall at all times be a committee of the full Municipal Council. A quorum of each Special Committee appointed shall consist of a majority of the members thereof.

Meetings of Special Committees shall be held at such times as not to conflict with pre-meetings, regular meetings or conference meetings.

RULE XXII. STANDING COMMITTEES

The only standing committee shall be the committee of the whole, and rules of procedures in the Municipal Council shall also be observed in the committee of the whole as far as applicable.

RULE XXIII. ORDINANCES, RESOLUTIONS, MOTIONS AND CONTRACT DOCUMENTS.

- (A) **Preparation of ordinances and resolutions.** The Corporation Counsel or her designee shall prepare ordinances, resolutions, or other legal documents when requested by the Municipal Council which shall be delivered to the City Clerk in conformity with Rule VI. A copy of same shall be forthwith furnished to each member of the Municipal Council by the City Clerk. All ordinance and resolutions submitted shall contain within its body, at the end, a section entitled "Statement" which shall contain a plain language and concise summary of the intent of said legislation for the general public to understand.

Ordinances shall be introduced and adopted in conformance with State statutes of the State of New Jersey.

- (B) **Prior approvals.** All ordinances, resolutions and contract documents before presentation to the Municipal Council by the Mayor or Business Administrator, shall have been reduced to writing and shall be approved as to form and legality by the Corporation Counsel or her designee. Prior to such presentation all such documents, may be first referred to the head of the department under whose jurisdiction the administration of the subject matter of the ordinance, resolution or contract document would devolve. When examined and approved by the department head and the Corporation Counsel, the Mayor, Business Administrator or his respective designee may be required to affix his signature on the document certifying to the factual content.
- (C) **Introducing for passage or approval.** Ordinances, resolutions and other matters and subjects requiring action by the Municipal Council must be introduced and sponsored by a Member of the Municipal Council except that the Mayor or Business Administrator

may present under Rule VI, ordinances, resolutions and other matters or subjects to the Municipal Council, and any Council Member may assume sponsorship thereof by moving that such ordinance, resolution, matter or subject be adopted in accordance with law; otherwise they shall not be considered. In the event that all Members of the Municipal Council wish to sponsor an item before the body for consideration the motion shall be Council-of-the Whole.

When a Council Member assumes sponsorship of an ordinance or resolution his name shall appear in the space provided thereon.

- (D) **Adoption.** Except as may otherwise be provided by State law resolutions and motions shall require five (5) affirmative votes for adoption. Ordinances other than bond and appropriation ordinances shall require five (5) affirmative votes for adoption. Bond and appropriation ordinance shall require six (6) affirmative votes for adoption. Resolutions creating emergency appropriations and budgetary transfers shall require six (6) affirmative votes for adoption.
- (E) **Veto by the Mayor.** Ordinances vetoed by the Mayor shall require six (6) affirmative votes to override the veto. Following a vote to override a veto by the Mayor, should the Municipal Council vote be successful, the City Clerk shall provide notice of the override to the Mayor, Business Administrator and Corporation Council as soon as practicable.
- (F) **Certification of passage of ordinance over mayor's veto.** Whenever an ordinance has been vetoed by the Mayor and is passed by the Municipal Council over such veto in the manner provided by law, the City Clerk shall append to such ordinance a certification in substantially the following form:

"I hereby certify that the above ordinance adopted by the Municipal Council of the City Newark on the ____ day of ____, was vetoed by the Mayor of the City, and was passed over the said veto on the ____ day of

Dated:
City Clerk"

RULE XXIV. NOMINATIONS AND ACTIONS THEREON.

All nominations to any office or position submitted to the Municipal Council shall be in writing and include the nominee's full name, home address and occupation. Upon receipt from the Mayor or Municipal Council of any nomination, the same shall be read under "Communications" by the City Clerk or his designee, and unless otherwise ordered, shall be considered by the Municipal Council under "New Business". When taken up for action the Presiding Officer shall put the question on each nomination as follows: "Will the Municipal Council confirm the nomination?" On that motion a vote shall be ordered, and if five (5) or more members vote to confirm, the Presiding Officer shall announce "The nomination is confirmed." If less than five (5) members vote to confirm, the Presiding Officer shall announce "The nomination is rejected." Action of confirmation or rejection, upon a nomination made by the Mayor or by the Municipal Council shall not be postponed or delayed longer than one (1) regular meeting. Following a postponement should no action be taken on the nomination

or the nomination fail to receive the required votes for adoption, the nomination shall be considered as having been rejected by the Municipal Council.

Prior to the confirmation of a nominee, the Mayor shall cause the Police Department to conduct an investigation and background check of said nominee to verify that he has no criminal record. If this investigation discloses evidence of a criminal record, the nomination shall not be considered by the Municipal Council.

Within two (2) days after confirmation or rejection of a nomination by the Municipal Council, the City Clerk shall in writing notify the Mayor of that fact.

RULE XXV. REPORTS AND RESOLUTIONS TO BE FILED WITH CITY CLERK.

All reports and resolutions shall be filed with the City Clerk and entered in the minutes.

RULE XXVI. ADJOURNMENT.

A motion to adjourn shall always be in order and decided without debate.